IN THE DISTRICT MAGISTRATE COURT HELD AT KOFORIDUA, THIS THURSDAY, THE 25TH DAY OF MARCH, 2025, BEFORE HER WORSHIP NANA AMA DABBAH FYNN NKANSAH (MRS)

SUIT NO: A1/31/21

JANET ODAME LARBI **PLAINTIFF**
OF HSE/NO: ECG 591
ZENU-ASHAIMAN
VERSUS

DEFENDANTS

1. **AGBO TETTEH**
2. **THE DEVELOPER (HANNAH AIDOO)**

BOTH OF BONYA, JUNCTION 25
KOFORIDUA

JUDGMENT

This case commenced with the issuance of a writ of summons and statement of claim by the Plaintiff seeking the following reliefs against the Defendants;

1. Declaration of title to all that piece or parcel of land situate lying and being at Bonya, Junction 25 measuring 100 feet more or less by 100 feet.

2. Perpetual injunction restraining the Defendants, their agents, servants, licensees, lessees, assigns etc from having any dealings with the said land.

3. Recovery of possession and Cost

PLAINTIFF'S CASE

The Plaintiff avers that in the year 2003, she and her husband acquired a parcel of land measuring 100 feet by 100 feet from the late Samuel Teye Oprem, in respect of which a receipt was issued to them. At the time of the transaction, the Plaintiff resided in Tamale, and she accordingly came to an arrangement with the vendor's wife, Mrs. Oprem, also known as 'Awonye', permitting her to cultivate the land until such time as the Plaintiff was ready to commence development.

The Plaintiff states that upon her eventual entry onto the land for purposes of development, she discovered that a quantity of chippings had been deposited on the said land. It is the case of the Plaintiff that following the death of her vendor, she was informed that the 1st Defendant, who is a nephew of the deceased vendor, had purportedly sold the land to the 2nd Defendant, who had subsequently commenced construction thereon.

The Plaintiff asserts that the Defendants' refusal to vacate the land and restore possession to her has given rise to the present action.

DEFENDANTS' CASE

The 1st Defendant contends that he is a nephew of the late Samuel Teye Oprem (hereinafter referred to as "S.T. Oprem"), his father being the late Alfred Teye Oprem, a brother of the said S.T. Oprem. He avers that the land in dispute forms part of a larger tract of land originally owned by his grandfather, Tetteh Wayo. Upon the death of Tetteh Wayo, the said land devolved unto his sons, S.T. Oprem and Alfred Teye Oprem, and accordingly shared between them.

It is the 1st Defendant's case that the land in dispute falls within the portion allotted to his late father, Alfred Teye Oprem, and that he, together with his siblings, had cultivated the said land over an extended period without any interference. Following the demise of his father, the 1st Defendant avers that S.T. Oprem undertook the distribution of Alfred Teye Oprem's estate among his seven children, during which the 1st Defendant was allocated the disputed land as his share. He further asserts that he had continued to farm on the said land without hindrance.

Subsequently, the 1st Defendant states that he sold the subject land, identified as **Plot No. 33, Sector 15A, Block 'P', Koforidua**, to the 2nd Defendant.

LAW ON THE STANDARD OF PROOF.

The ***"Standard of Proof"*** in civil matters inclusive of land matters is unambiguously stated in the **EVIDENCE ACT, 1975 (NRCD 323)** to be ***"proof on the preponderance of probabilities"***. It is settled that a party who asserts the occurrence and/or existence of a state of fact has the burden of proof on that assertion and must adduce enough evidence to avoid a ruling against him/her on that matter.

Section 12 and 14 of the Evidence Act provides thus;

12. Proof by a preponderance of the probabilities

1) Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities.

"Preponderance of the probabilities" *means that degree of certainty of belief in the mind of the tribunal of fact or the Court by which it is convinced that the existence of a fact is more probable than its non-existence.*

14. Allocation of burden of persuasion

Except as otherwise provided by law, unless it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence that party is asserting.

On the authority of **ABBEY VRS. ANTWI (2010) SCGLR** 16 at holding 2 the Honorable Court held that:

> ***"It is trite that where a party makes an assertion capable of proof in a certain way e.g. by producing documents, description of things or references to other facts, instances or circumstances and his averment is denied, he does not prove it by merely going into the witness box and repeating that averment on oath, or having it repeated by his witness. He proves it by producing other evidence of facts and circumstances, from which the court can be satisfied that what he avers is true."***
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> **See also: SUMAILA BIEBEL v ADAMU DRAMANI (2012) SCGLR**

From the facts as cited above, the court shall set down the following issues for the determination of the case:

1. Whether or not the land in dispute was the bona fide property of the late S.T Oprem
2. Whether or not Plaintiff is entitled to her claims.

ISSUE 1

Whether or not the land in dispute was the bona fide property of the late S.T Oprem.

Plaintiff's case is that the land in dispute was sold to her by the late S.T Oprem to which she tendered a copy of the receipt given her in acknowledgement of the purchase as Exhibit A. However, it is 1st Defendant's case that the said land was not the property of S.T Oprem but his father's, Alfred T. Oprem. In the face of this

denial, the Plaintiff caused the court to subpoena Mrs Oprem 'Awonye' who when asked about the ownership of the land in dispute during cross examination stated as follows;

Q: Did you know of any transaction between Plaintiff and your late husband?
A: I do not know anything like that.

Q: The land belonged to your late husband. Is that not so?
SW: I cannot tell. I know nothing about it.

Later, the subpoenaed witness gave the following answers:

Q: Do you know the owner of the land prior to the Plaintiff telling you to farm on it?
A: Since it was my husband that sold it to the Plaintiff, I thought it belonged to my husband.

Q: You told this Court a while ago that you did not know of any transaction between your late husband and the Plaintiff not so?
A: I know that my husband sold the land to the Plaintiff.

The excerpt above, is just a small example of the inconsistencies littered in the subpoenaed witness testimony. It is crystal clear that this witness is not a credible witness and this her testimony which is full of inconsistencies assists this court in no way to determine this matter.

Again, the evidence of SW2(Grace Amehame) was not helpful to Plaintiff's case as although she claimed S.T Oprem told her he had sold the disputed property to someone else, he did not tell her who the said someone is. Therefore, the court still

does not know if the disputed property belonged to S.T Oprem before he transferred same to Plaintiff.

Let us consider Exhibit A which is the receipt that was issued to the Plaintiff by S.t Oprem. The position of the law has always been that receipts cannot transfer an interest in land but it is evidence of payment in pursuance of an agreement to transfer an interest in land.

See: **DONKOR v ALHASSAN (1987-88) 2 GLR 253**

Exhibit A also does not prove to the court that S.T Oprem was the owner of the disputed property and as such could pass title in same to the Plaintiff.

On the other hand,1st Defendant traces his root of title to his father when he says the property was shared among him and his siblings upon their father's death; and that the disputed property was allocated to him. In corroboration of this assertion, 1st Defendant called DW1, the head of the Oprem family who testified that he was even present when the land in dispute was allocated to the 1st Defendant. The position of DW1 as head of family was not challenged. Although Counsel for Plaintiff sought to establish that the said property was not allocated to 1st Defendant at all, this court is inclined to accept the evidence of DW1 in his capacity as head of family to be more probable that Plaintiff who has not been able to prove to the this court per her evidence that S.T Oprem had good title in the property that he passed on to her. Therefore, this court finds, on the basis of the evidence led, that S.T Oprem did not own the disputed property and per the principle of *nemo dat quod non habet*; one cannot give what one does not own. This means that the disputed property did not belong to S.T Oprem and he could not have possibly passed on good title to the Plaintiff.

See: **WESTERN HARDWOOD ENTERPRISE LTD AND ANOTHER v WEST AFRICAN ENTERPRISES LTD [1997-98] 1 GLR 645**

Since it has been established that good title did not pass from S.T Oprem to the Plaintiff, then there is no need to go into the merits of the other reliefs because if the foundation, which is the title has failed, then they automatically also fail.

Therefore, the court makes the following orders:

1. Plaintiff's claims fail in its entirety and same is accordingly dismissed.
2. Cost of GHS 8000.00 in favour of Defendants.